

201 Burrard Street

BY-LAW NO. **7679**

A By-law to amend
By-law No. 3575, being the
Zoning and Development By-law

THE COUNCIL OF THE CITY OF VANCOUVER, in open meeting assembled,
enacts as follows:

1. The "Zoning District Plan" annexed to By-law No. 3575 as Schedule "D" is hereby amended according to the plan marginally numbered Z-433(b) and attached to this By-law as Schedule "A", and in accordance with the explanatory legends, notations and references inscribed thereon, so that the boundaries and districts shown on the Zoning District Plan are varied, amended or substituted to the extent shown on Schedule "A" of this By-law, and Schedule "A" of this By-law is hereby incorporated as an integral part of Schedule "D" of By-law No. 3575.

2. Intent

The intent of this By-law is to permit the development of the district with office and hotel uses, some retail, service and marina uses and a major cultural and recreational facility in a form which complements, and is compatible with, the character of adjacent areas.

3. Definitions

In this By-law, definitions contained in the Zoning and Development By-law shall apply except that, Base Surface shall be calculated from the building grades on the upper level roads; for the development on sub-area 2, Base Surface shall be a horizontal plane which extends outward to the harbour headline from building grades on the upper level road at the inland corners; and for the marina development, Base Surface shall be calculated from the adjacent grade of the floating access docks.

4. Uses

The area shown included within the heavy black outline on Schedule "A" shall be more particularly described as CD-1(363), and the only uses permitted within the outlined area, subject to such conditions as Council may by resolution prescribe, and the only uses for which development permits will be issued are

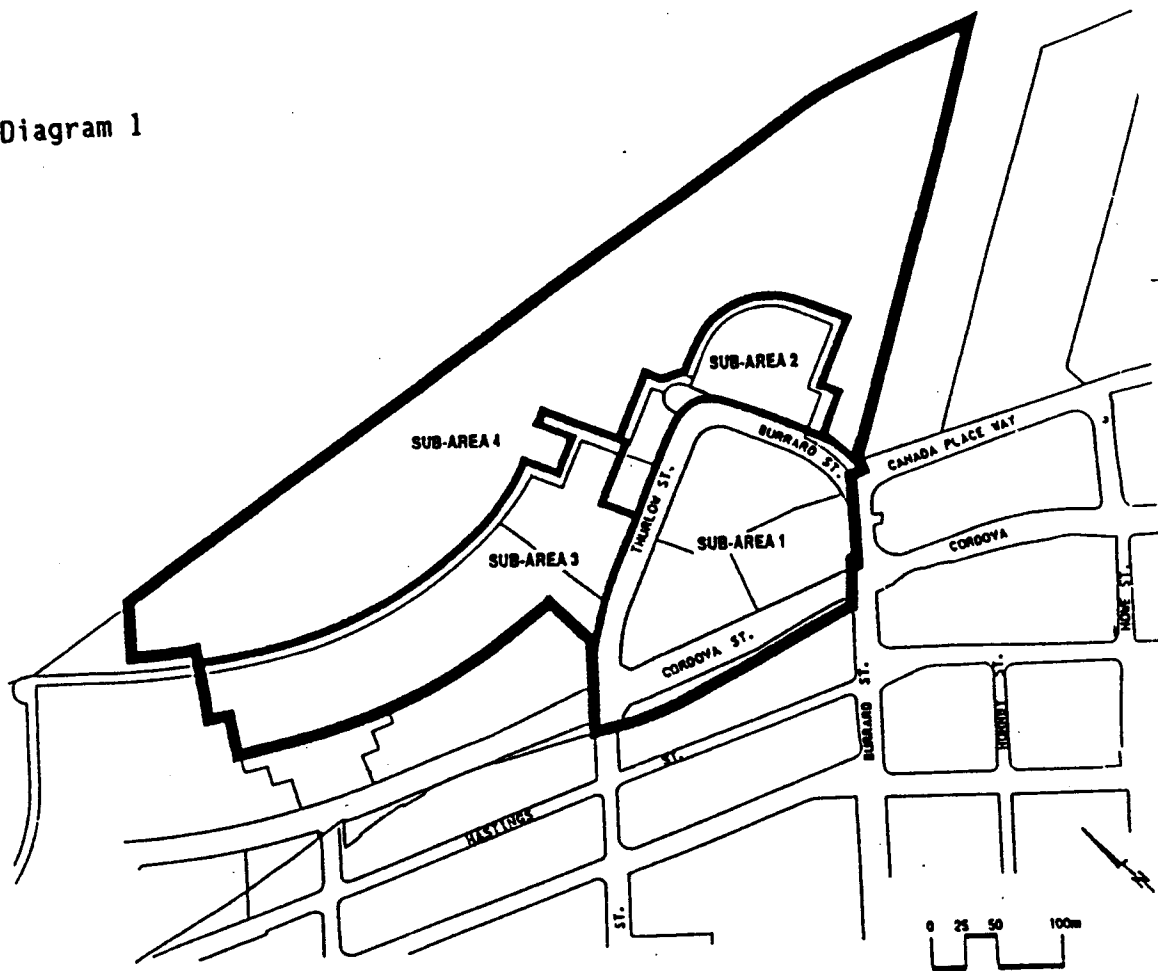
- (a) Cultural and Recreational Uses, including a Marina having a maximum of 100 berths,
- (b) Institutional Uses, but not including a Detoxification Centre and Special Needs Residential Facility,
- (c) Marine Terminal or Berth,
- (d) Office Uses,
- (e) Parking Uses,
- (f) Public Utility,
- (g) Retail Uses, but not including Gasoline Station - Full Serve, Gasoline Station - Split Island, and Vehicle Dealer,
- (h) Service Uses, but not including Animal Clinic, Auction Hall, Bed and Breakfast Accommodation, Body-rub Parlour, Drive-through Service, Funeral Home, Laboratory, Laundry or Dry Cleaning Plant, Motor Vehicle Repair Shop, Motor Vehicle Wash, Photofinishing or Photography Laboratory, Repair Shop - Class A, and Sign Painting Shop,
- (i) Accessory Uses customarily ancillary to the above uses,
- (j) Interim Uses not listed above and Accessory Uses customarily ancillary thereto, provided that
 - (i) the Development Permit Board considers that the use will be compatible with and not adversely affect adjacent development that either exists or is permitted by this By-law,
 - (ii) the Development Permit Board is satisfied that the use can be easily removed and is of low intensity or low in capital investment,
 - (iii) the Development Permit Board is satisfied that there is no risk to the public from contaminated soils either on or adjacent to the subject site, and

- (iv) development permits are limited in time to periods not exceeding three years.

5. Sub-Areas

The district shall comprise four sub-areas approximately as illustrated in Diagram 1 below.

Diagram 1



6. Floor Area and Density

6.1 The total floor area for the uses listed in Table 1 shall not exceed the totals set opposite for such uses, and any use permitted by section 4 but not listed in Table 1 is not limited by this subsection 6.1.

TABLE 1

USE	MAXIMUM FLOOR AREA
Office	139 500 m ²
Hotel	37 000 m ²
Cultural and Recreational	10 000 m ²
Retail & Service, excluding Hotel	9 500 m ²

6.2 The following shall be included in the computation of floor space ratio:

- (a) all floors having a minimum ceiling height of 1.2 m, both above and below ground level, to be measured to the extreme outer limits of the building.

6.3 The following shall be excluded in the computation of floor space ratio:

- (a) cultural and recreational uses, including theatre, and accessory uses customarily ancillary thereto, including restaurant and gift shop, up to a maximum exclusion of 10 000 m² located on sub-area 3;
- (b) cultural and recreational uses, including fitness centre, swimming pool and library, which provide opportunities for physical fitness, general recreation and a service to the public, and which are not operated for profit, up to a maximum exclusion of 2 790 m² for sub-area 1 and 930 m² for sub-area 2;
- (c) child day care facilities to a maximum floor area of 10 percent of the permitted floor area, provided the Director of Planning, on the advice of the Director of Social Planning, is satisfied that

there is a need for a day care facility in the immediate neighbourhood; and

- (d) where floors are used for off-street parking and loading, bicycle storage, heating and mechanical equipment, or uses which in the opinion of the Director of Planning are similar to the foregoing, those floors or portions thereof so used which are at or below the base surface.

6.4 The Director of Planning may permit interior public space, including atria and other similar spaces, to be excluded from the floor space ratio, provided that

- (a) the excluded area shall not exceed the lesser of 10 percent of the permitted floor area or 600 m² for each major office or hotel development application located on sub-areas 1 and 2,
- (b) the excluded area shall be secured by covenant and right-of-way in favour of the City of Vancouver which set out public access and use, and
- (c) the Director of Planning first considers all applicable policies and guidelines adopted by Council.

6.5 The total floor area in each sub-area for the uses listed in Table 2 shall not exceed the applicable totals set opposite such uses, and any use permitted by section 4 but not listed in Table 2 is not limited by this subsection 6.5.

TABLE 2
MAXIMUM FLOOR AREA (in square metres)

Use	Sub-Areas (from Diagram 1)			
	1	2	3	4
Office	139 500	N/A	N/A	N/A
Hotel	N/A	37 000	N/A	N/A
Cultural/Recreational			10 000	
Retail/Service	3 665	4 905	N/A	930

7. Height

7.1 The maximum building height measured above the base surface, but excluding the mechanical penthouse and roof, shall be as set out in Table 3.

TABLE 3
MAXIMUM HEIGHT (in metres)

	Sub-Areas (from Diagram 1)			
	1	2	3	4
Maximum Height	92.0	65.0	33.0	8.0

7.2 The Director of Planning may, provided he first considers the applicable policies and guidelines adopted by Council by a Special Council Meeting held on September 15, 1994, relax the maximum height shown for Sub-Area 1 in section 7.1 to 115.0 m for the tower at the Burrard/Cordova portion of the site, and 101.0 m for the tower at the Burrard/Thurlow portion of the site.

8. Parking

Off-street parking shall be provided, developed and maintained in accordance with the applicable provisions of the Parking By-law, except that office uses shall provide a minimum of 1 space for each 100 m² of gross floor area, and except that the Director of Planning, in consultation with the City Engineer, may relax this provision utilizing section 4.1.9 of the Parking By-law.

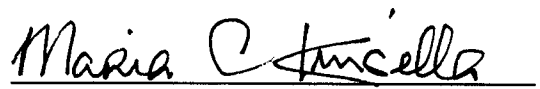
9. Acoustics

All development permit applications shall require evidence in the form of a report and recommendations prepared by a person trained in acoustics and current techniques of noise measurement, demonstrating that noise levels in hotel sleeping rooms and any child day care facility shall not exceed 35 decibels, measured as the A-weighted 24-hour equivalent (Leq) sound level.

10. This By-law comes into force and takes effect on the date of its passing.

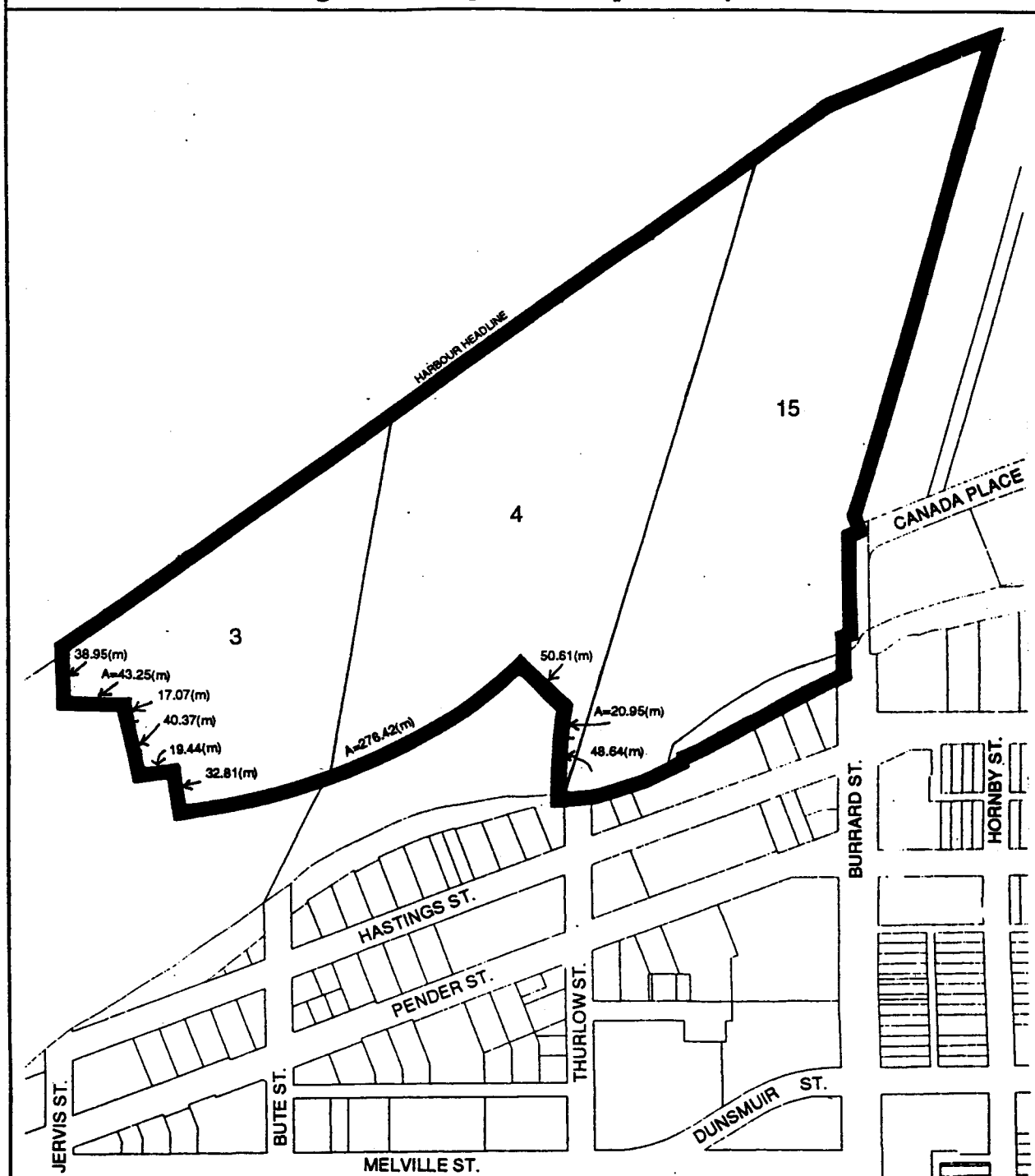
DONE AND PASSED in open Council this 26th day of November 1996.


Mayor


City Clerk

Schedule A

By-law No. **7679** being a By-law to amend By-law No. 3575
being the Zoning & Development By-law



The property outlined in black (—) is rezoned:
From **CWD** to **CD-1**

Z-433(b)

RZ-201 Burrard Street

map: 1 of 1
scale: 1:4500



City of Vancouver